

Court No. - 21

Case :- WRIT - C No. - 6230 of 2023

Petitioner :- Moharram Ali

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Amit Kumar Srivastava

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

Sri Narendra Kumar Tiwari, counsel for respondent no.2 prays for and is granted time to obtain instructions.

List as fresh on 1.03.2023.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 23.2.2023

SL

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Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The petitioner has challenged the demand notice dated 2.09.2022 issued by respondent no.2 against the petitioner for recovery of electricity dues in a case of theft of electricity.

Sri N.K. Tiwari, learned counsel for the respondent-Electricity Department states that the impugned recovery has been withdrawn and that fresh order will be passed after following the procedure prescribed in law.

Accordingly, the petition is disposed of with liberty to the respondent-Electricity Department to pass a fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 1.3.2023

SL